TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1694]

[Fairbanks 014521]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF BUREAU OF PUBLIC ROADS AS A HIGHWAY MAINTENANCE DEPOT

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws and not the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U. S. C. 601–604) as amended, and reserved for use of the Bureau of Public Roads as a highway maintenance depot:

BLACK RAPIDS AREA

Beginning at a point from which P. I. Sta. "S" 1699+12.1 on the Richardson Highway, approximate latitude 63°25' N., longitude 145°46' W., bears N. 78°19'30" E., 125.44 feet thence,

S. 59°35'00" W., 330.0 feet;
S. 30°25'00" E., 660.0 feet;
N. 59°35'00" E., 518.2 feet to a point on the centerline of the Richardson Highway;
Northerly, 600 feet, approximately; along the centerline of the Richardson Highway to Sta. "S" 1699+50;
S. 59°35'00" W., 150 feet to the point of beginning.

The tract described contains 7.56 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 25, 1958.

[F. R. Doc. 58-5880; Filed, July 31, 1958; 8:45 a. m.]

[Public Land Order 1695]

[958795]

ALASKA

REVOKING EXECUTIVE ORDER NO. 3406 OF FEBRUARY 13, 1921, WHICH ESTABLISHED EAST FORELAND LIGHTHOUSE RESERVATION; WITHDRAWING A PORTION OF RELEASED LANDS FOR USE OF COAST GUARD

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3406 of February 13, 1921, which withdrew lands in Alaska for the East Foreland Lighthouse Reserve, now described as U. S. Survey No. 1615, is hereby revoked.

2. Subject to valid existing rights, the following-described lands, which are a portion of the lands included in paragraph 1 of this order, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral-leasing laws, but not the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U. S. C. 601–604) as amended, and reserved for use of the United States Coast Guard for lighthouse purposes:

SEWARD MERIDIAN

T. 7 N., R. 12 W.,
Sec. 4, lots 5, 6, and W½SE¼SW¼;
Sec. 5, lot 1;
Sec. 8, lot 1;
Sec. 9, lots 1 and 2.

The areas described aggregate 151.99 acres.

3. The lands released from Executive Order No. 3406 by this order are described as follows:

SEWARD MERIDIAN

T. 7 N., R. 12 W.,
Sec. 3, lots 1, 2, 3, 8, 9, 10, 11, 12, NW¼NE¼, S½NW¼, and NW¼SW¼;
Sec. 4, lots 1, 2, 3, 4, 7, 8, and E½SE¼SW¼;
Sec. 9, lots 3, 4, 7, 8, NE¼, E½NW¼, E½SW¼, and NW¼SE¼;
Sec. 10, lot 7;
Sec. 16, lots 1, 2, 10, 11, 12, 13, and NE¼NW¼.
T. 8 N., R. 12 W.
Sec. 34, lots 1, 2, 4 and 5;
Sec. 35, lot 31.

The areas described aggregate 1347.89 acres.

4. All the lands are within the exterior boundaries of the Kenai National Moose Range as established by Executive Order No. 8979 of December 16, 1941, but are within a "strip" of land six miles in width which by that order was left subject to settlement location, sale, entry, and to other forms of lease and disposal under the public land laws, with the proviso that the lands in such excepted areas should be classified, and those classified as not suitable for settlement should no longer be available for that purpose.

5. As the lands in section 16 are reserved for the support of the common schools in Alaska pursuant to the act of March 4, 1915 (38 Stat. 1214; 48 U. S. C. 353, 354) as amended, paragraph 8 hereof does not apply to those lands.

6. In accordance with the provisions of the act of July 28, 1956 (70 Stat. 709, 711; 48 U. S. C. 46–3 (b)), the Territory of Alaska shall have, until 10:00 a. m. on October 25, 1958, a preferred right of selection of the lands, subject to prior existing valid rights and to equitable claims subject to allowance and confirmation.

7. No application for the lands may be allowed under the homestead, small tract, or any other nonmineral public land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

8. Subject to any existing valid rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Alaska Home Site, and Small Tract Laws by qualified veterans of World World II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on October 25, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on January 24, 1959, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on January 24, 1959, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral leasing laws pursuant to the regulations in 43 CFR 192.9. They will be open to location under the United States mining laws beginning at 10:00 a. m. on January 24, 1959.

9. Persons claiming veterans preference rights under paragraph 8a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 25, 1958.

[F. R. Doc. 58-5881; Filed, July 31, 1958; 8:46 a. m.]